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Provision of September 12, 2024
Register of provisions
n. 546 of September 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD to Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Reporting Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX, a military member
of the Carabinieri Corps, reported certain
alleged violations of the rules regarding
the protection of personal data by the Order

of Nursing Professions (OPI) of Pordenone (hereinafter, the "Order").

In particular, the complainant stated that he learned that, on XX, at the Legion Command where he serves (hereinafter, the "Legion Command"), a certified email message was received, containing an attached note, with the subject "Report of conduct [name and surname of the complainant]," signed by the President of the Order (also in the capacity of President of the Coordination of OPIs of Friuli Venezia Giulia – hereinafter, the "Coordination") and by the Presidents of the OPIs of Gorizia, Trieste, and Udine. With this note, the Legion Command was informed of the "series of requests for general civic access" and the "multiple reports" that the complainant and his wife had made to the aforementioned OPIs, as well as information regarding the complainant's wife (profession; registration with the Order) and the evaluations expressed by such OPIs regarding the considered inappropriateness of such requests and reports, deemed "largely unfounded and which, even from the perspective of the ordinary citizen, have no purpose or utility," having as "the sole purpose [...] that of having requested a great commitment from the administrative offices, from the staff, from the institutional roles of the Entities and from the consultants and professionals who assist them, diverting precious time and also substantial economic resources from the ordinary activities of the Orders." The OPIs therefore "deemed it appropriate to submit to the [Commander of the Legion Command] the conduct of [the complainant], [serving in] the Carabinieri Corps, which always and in any case represents, to avoid creating an obstacle to the institutional activity of the aforementioned professional Orders for mere personal interests [...]", asking him "to take into consideration what [...] has been stated, solely for the purpose of improving relations between State Entities, which should collaborate with each other for the benefit of the citizen and the institutions they represent." According to the complainant, the communication of the aforementioned personal data to the Legion Command, as well as the exchange of such data among the various OPIs that are part of the Coordination, including the Order, would have occurred in the absence of a legal basis. Furthermore, the complainant lamented the circumstance that the Order and the other OPIs that are part of the Coordination would have unlawfully processed the personal data related to his profession and employer, which had never been disclosed by the complainant to them. The complainant also complained of not having received from the Order, at the time of the submission of the aforementioned requests for civic access and reports, any information regarding the processing of his personal data, including regarding the possibility of exercising the rights referred to in Articles 15-22 of the Regulation. An additional reason for the complaint concerns the

circumstance that the Order did not provide a response to a request for the exercise of the right of access to personal data, made by the complainant to the Order pursuant to Articles 12 and 15 of the Regulation.

2. The investigative activity.

In response to two requests for information from the Authority (see notes prot. n. XX of XX and n. XX of XX), the Order, with a note dated XX, through the own lawyer, stated, in particular, that:

“[...] the [OPI] are non-economic public entities of very small size: the Order [...] consists of two permanent and part-time units (66.66%): 1 Administrative Collaborator (category C) and 1 Administrative Assistant (category B). There are no managerial figures, and most of the duties are performed by the President, the Treasurer, and the Secretary, who, in addition to carrying out their profession, provide their services free of charge”;

“[...] the claimant has submitted countless requests for access to the Order [...]”;

“the management of such a quantity of requests, appeals, complaints, warnings, and reports from the [claimant] has historically overlapped not only with the normal activities of the Order (registrations, terminations, changes, certifications, professional training, disciplinary proceedings, etc.), but, above all, with the management of the enormous workload resulting from the pandemic crisis and the administrative proceedings for the suspension of unvaccinated nurses, pursuant to DL 44/21”;

“[...] in this context, the management of the claims of the [claimant] – regardless of their legitimacy – seriously jeopardized the operational capacity of the Order in the Friuli Venezia Giulia Region, thus compromising the exercise of a public power. There were concrete and serious legal risks for the Presidents, including offenses such as omissions of official acts”;

“on these premises, the [four] Presidents of the regional Orders, institutionally gathered in the Coordination [...], found themselves compelled by the urgent necessity to find a ‘joint’ solution to normalize relations with the [claimant], agreeing to activate every possible avenue to find an amicable compromise solution and thus allow the concentration of workforce and resources of the entity on the pressing institutional and ordination activities, at least until the end of the pandemic emergency”;

“all of the above outlines both a legitimate interest of the holder to process the personal data of the [claimant], outside the execution of ordination tasks proper to public authorities, in the public interest of ensuring the proper functioning of the entity pursuant to Article 97 of the Constitution”;

“it is finally specified that the involvement of the Regional Coordinations derives precisely from the fact that they are bodies responsible for managing ‘common issues’ for the [OPI] of a specific territory (Region), by virtue of a Regulation adopted by the National Federation in 2016, which provides for their establishment and regulates their operations [...], published on the institutional website <https://www.fnopi.it/amministrazione-trasparente/disposizionigenerali/atti-generalii/>”;

“in relation to the further personal data of the claimant and, in particular, to the affiliation with the Carabinieri Corps, it is highlighted that in compliance with the principles of lawfulness, fairness, and transparency, the Presidents, in the above-described perspective, sought information about the claimant on the web with a simple search on [a search engine]”;

“the claimant's affiliation with the Carabinieri Corps is a public fact, resulting from documents, including official ones, that can be found and consulted by anyone online, with a simple search by name and without entering any other identifying data, including those provided by the claimant himself”;

“[...] the request addressed to the [Legion Command] had the sole purpose of informing the superiors of the conduct of the [claimant], so that they could jointly intervene by raising awareness about the inappropriateness of his initiatives, thus avoiding formal steps against him”;

“[...] this is also in light of the Code of Conduct for employees of the Ministry of Defense, from which the Carabinieri Corps depends [...]”;

“no personal data was communicated to the Command that it did not already know”;

“other access proceedings pursuant to Legislative Decree 33/2013 by the [claimant] to other public authorities are, moreover, subject to publication by the recipient entities and are available online as

public data, with the identification of the requester”;

“the information on the processing of personal data is published on the institutional website of the Order at the following page <https://www.opipordenone.it/> [...]”;

as for the “alleged failure to respond to a ‘clarification’ of a previous request for access to data, which the Order duly responded to within the terms and of which even the [claimant] – in the same clarification – acknowledges,” the Order believes that “what he would complain about as an omitted response is nothing more than a reiteration of the previous [request], which was already exhaustive.”

With a note dated XX (protocol no. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the Order:

- processed the personal data relating to the profession and employer of the claimant in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- communicated the personal data of the claimant and his spouse to other [OPI] in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

Regulation, as well as Article 2-ter of the Code;

- communicated to the Command of the Legion the personal data of the complainant and his spouse, contained in the joint note of the Presidents of the OPI (prot. no. XX of XX), in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- failed to enter into a co-controller agreement for the processing with the other OPIs, in violation of Article 26, paragraphs 1 and 2, of the Regulation;

- failed to provide the complainant and his spouse with information on the processing of personal data, in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data obtained directly from the data subjects) and 14 (in relation to data not obtained directly from the data subjects) of the Regulation;

- failed to respond to the request for the exercise of the right of access made by the complainant, as well as failing to inform him, without delay, and at the latest within one month of receiving the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy, in violation of Articles 12, paragraphs 3 and 4, and 15, paragraph 1, of the Regulation.

With the same note, the aforementioned data controller was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note dated XX, the Order, through its lawyer, submitted a defensive memorandum, stating, in particular, that:

“the four [OPIs] did not adopt the measure of Article 26 of the Regulation, as they were subject to separate and repeated requests for access to documents that they always managed individually, until the decision of the Coordination [...] to involve the Commander of the Carabinieri to reach a clarifying meeting between the parties”;

“the violation did not persist over time. The severity of the violation does not appear to be high, as the processing concerns public data or, in any case, data such that their processing or communication to the complainant's employer could cause, in itself, harm”;

“Article 748, paragraph 5, of the DPR 90/2010 (consolidated regulatory text of military legislation)” provides that “the military must also promptly communicate to their command or entity: a) any change in civil status and family” and, therefore, “the recipient of the communication was already informed of the civil status of the data subject. The information then reached only one subject: the communication was personally addressed to the only Commander, in order to find a reasonable mediation to the

unfortunate situation that had arisen with the data subject”;

“the OPI acted solely with the aim of finding, in good faith, an authoritative interlocutor who could mediate with the data subject on the numerous requests and complaints, so as to ensure its operability at a time of particular difficulty arising from the burdens related to the supervision of the vaccination obligation imposed on the members. There was no intention to cause any harm to the complainant or the spouse, who, in fact, did not complain about anything in this regard”;

“the data processed do not fall into the category of ‘special’ data, nor are they health-related or judicial data”;

“the OPI in good faith believed that the legal basis for processing was the legitimate interest of the controller, pursuant to Article 6, paragraph 1, letter f) of the Regulation. It is true that paragraph 4 of Article 6 of the Regulation excludes the presence of legitimate interest when the Controller is a public authority, but the European legislator has expressly limited this exclusion to cases of processing by public authorities ‘for the performance of their tasks’. [...] In our case, the OPI believed that contacting the Commander to attempt mediation regarding the numerous requests of the complainant during a period of high stress and commitment for the offices fell within the legitimate interest ‘outside the performance of institutional tasks’ of the entity”;

“with regard to the communication of the complainant's personal data to the other OPIs [...], the severity of the violation does not appear to be high, as the mutual communication of the complainant's personal data among the OPIs [...] was already necessary by law. In fact, all four Orders had already been subject to numerous requests for access from the complainant for the disclosure of documents that involved Presidents, Secretaries, and employees of the four Orders also as ‘interested parties’ pursuant to Article 22, paragraph 1, letter c) of Law 241/90 and therefore were mutually recipients of the informative communications of opposition under Article 3 of DPR 184/06”;

“regarding the allegation of failing to respond to the request for the exercise of the right of access made by the complainant, as well as failing to inform him, without delay, and at the latest within one month of receiving the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy, in violation of Articles 12, paragraphs 3 and 4, and 15, paragraph 1, of the Regulation, it is noted that such a response appears to have been provided with communication” of XX (prot. no. XX), produced in the records by the Order. During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see minutes prot. no. XX of XX), the Order has declared, in particular, that:

“the matter subject to the complaint occurred in the difficult context of the SARS-CoV-2 epidemic, in which the Order, being a non-economic public entity with a limited organizational structure and limited financial resources, had to face numerous and burdensome obligations provided for by emergency regulations, having to make delicate decisions, in very short timeframes, within a legal framework characterized by high legal complexity. In particular, the Order had to process over one hundred proceedings aimed at verifying the possession of the vaccination requirement by the professionals registered pursuant to art. 4 of Legislative Decree 44/2021”;

“in this difficult context, the complainant submitted numerous requests for access to documents to the Order, which could have been managed by a single employee, putting the Entity in great difficulty”;

“the Order, by sending the note to the Command Legion [...], where the complainant carried out his work activity, did not intend in any way to infringe upon the privacy of the interested party or to request the adoption of disciplinary measures against him, but sought to remind the interested party of the general duties of correctness that also arise from his membership in the Armed Forces, hoping that this could limit the number of requests submitted by the interested party to the Order, which, although formally lawful, were causing difficulties for the organization of the Entity.”

3. Outcome of the investigative activity.

3.1 The processing of personal data relating to the profession and employer of the complainant.

Public entities, in accordance with the principle of “lawfulness, fairness, and transparency” (art. 5, par. 1, lett. a), of the Regulation), may, as a rule, process personal data if the processing is necessary to fulfill a legal obligation or for the execution of a task in the public interest or related to the exercise of public powers (see arts. 6, par. 1, lett. c) and e), and paras. 2 and 3 of the Regulation, as well as 2-ter

of the Code).

In this case, the Order acquired information relating to the profession carried out by the complainant by querying a search engine and consulting publicly available documents on the Internet.

Such online search operations, consultation, and recording of information relating to the profession and employer of the complainant constitute processing of personal data (see art. 4, nos. 1 and 2, of the Regulation), which, however, cannot be considered necessary for the purposes of the administrative proceedings related to the requests for civic access and the reports submitted by the complainant to the Order, regardless of whether such information was available on the Internet due to its publication by the interested party or third parties for other purposes, unrelated to the institutional functions of the Order (cf. provisions of November 24, 2022, no. 385, web doc no. 9839018; March 10, 2022, no. 82, web doc no. 9761383; January 13, 2022, no. 7, web doc no. 9745807; July 2, 2020, no. 118, web doc no. 9440025; February 13, 2020, no. 35, web doc no. 9285411).

The Order, therefore, processed the personal data relating to the profession and employer of the complainant in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of arts. 5, par. 1, lett. a), and 6 of the Regulation, as well as 2-ter of the Code.

3.2 The communication of personal data to other OPI of Friuli-Venezia Giulia.

From the documentation on file and the statements made during the investigation, it is also established that the Order shared with other OPIs of Friuli-Venezia Giulia the information relating to the requests for civic access and the reports submitted by the complainant and his spouse, carrying out a processing of personal data that cannot be considered necessary for the purposes of the proceedings initiated in relation to the aforementioned requests for access and reports.

In this regard, it should be noted, with considerations that apply to the overall processing of personal data subject to complaint, that the defensive thesis of the Order cannot be accepted, according to which "the access proceedings under Legislative Decree 33/2013 [...] are subject to publication by the recipient entities and are available online, as public data, with the identification of the requester." As clarified by the National Anti-Corruption Authority (ANAC) in its Guidelines adopted in agreement with the Guarantor, the "register [of access requests, where established,] contains the list of requests with the subject and date and the related outcome with the date of the decision and is published, obscuring any personal data that may be present [...]" (par. 9 of Determination no. 1309 of 12/28/2016 containing the "Guidelines providing operational indications for the definition of exclusions and limits to civic access under art. 5, co. 2 of Legislative Decree 33/2013," in G.U. no. 7 of 01/10/2017 and at <https://www.anticorruzione.it/-/determinazione-n.-1309-del-28/12/2016-rif.-1>; see also par. 8.2.b. of the Circular of the Minister for Public Administration no. 1 of 2019, containing "Implementation of the rules on generalized civic access (so-called FOIA)," at

http://www.funzionepubblica.gov.it/sites/funzionepubblica.gov.it/files/Circolare_FOIA_n_1_2019.pdf).

It should also be noted that, although in its defensive memoranda the Order stated that the OPIs were already mutually aware of the access requests submitted by the complainant, as they were interested parties in the proceedings related to each access request,

****3.2** The Order has not proven this circumstance, having not produced the administrative documentation related to said proceedings. The Order has, therefore, communicated the personal data of the complainant and their spouse to the aforementioned OPI in a manner that does not comply with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.**

****3.3** The communication to the Command Legion of the personal data of the complainant and their spouse contained in the joint note from the Presidents of the OPI of Friuli Venezia Giulia.**

With note prot. n. XX of XX, signed by the President of the Order (also in the capacity of President of the Coordination) and by the Presidents of the OPI of Gorizia, Udine, and Trieste, and addressed to the Command Legion, where the complainant performs their work activity, the Order communicated to the Command Legion certain personal data of the complainant, namely information related to the requests for access to documents and the reports submitted by the complainant to the aforementioned

OPI and other public entities, the evaluations of the OPI regarding the appropriateness of such requests and reports, and the overall conduct of the complainant, as well as information regarding the marital relationship between the complainant and a professional registered with the Order. With the note in question, personal data relating to the complainant's spouse were also communicated to the Command Legion, particularly regarding the circumstance that she had also submitted requests for access and reports, as well as the marital relationship with the complainant. That said, it must be noted that the communication to the Command Legion of the personal data in question cannot be considered necessary to fulfill legal obligations or to perform a task in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as Article 2-ter of the Code). Indeed, the thesis of the Order, according to which such processing of personal data would be necessary for the pursuit of the legitimate interest of the Order to ensure the proper conduct of its administrative action (see Article 97 of the Constitution), cannot be accepted. This is because the legal basis of legitimate interest, referred to in Article 6, paragraph 1, letter f), of the Regulation, "does not apply to the processing of data carried out by public authorities in the execution of their tasks" (Article 6, paragraph 1, last sentence, of the Regulation). In this regard, the Court of Justice of the European Union has stated that "from the wording of Article 6, paragraph 1, second sentence, of the [Regulation], it is clear that a processing of personal data carried out by a public authority in the context of the execution of its tasks cannot fall within the scope of Article 6, paragraph 1, first sentence, letter f), of the [Regulation]; as indeed, 'it follows from recital 47 of the [Regulation] [...], that this latter provision cannot apply to such data processing, since its legal basis must be provided by the legislator,' with the consequence that 'if the processing carried out by a public authority is necessary for the execution of a task in the public interest, and thus falls within the tasks mentioned in Article 6, paragraph 1, second sentence, of that regulation, the application of Article 6, paragraph 1, first sentence, letter e), of the [Regulation] and that of Article 6, paragraph 1, first sentence, letter f), of the latter exclude each other' (Judgment C-180/21, *Inspektor v Inspektorata kam Visshia sadeben savet*, of December 8, 2022, paragraph 85). Nor is it relevant that, as asserted by the Order in its defense submissions, military law provides that the soldier must inform the Command of their civil status, since, in this case, the Order, together with the other OPI, communicated to the Command Legion additional information beyond mere civil status, namely the profession of the spouse, her registration with the Order, and the fact that she had submitted requests for civic access and reports. The communication to the Command Legion of the personal data of the complainant and their spouse is, therefore, non-compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.**

****3.4 The failure to enter into a co-controller agreement for the processing.****

Pursuant to Article 4, paragraph 1, no. 7), of the Regulation, the data controller is "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria applicable to its designation may be established by Union or Member State law."

When two or more data controllers jointly determine the purposes and means of processing, "they are joint controllers of the processing" and must "determine transparently, through an internal agreement, their respective responsibilities regarding compliance with the obligations arising from the [...] regulation, with particular regard to the exercise of the rights of the data subject, and their respective functions for communicating the information referred to in Articles 13 and 14, unless and to the extent that their respective responsibilities are determined by Union or Member State law."

Member State to which the data controllers are subject. This agreement may designate a point of contact for the data subjects" (Article 26, paragraph 1, of the Regulation). The agreement between the joint controllers "adequately reflects their respective roles and the relationships of the controllers with the data subjects" and the "essential content of the agreement [must be] made available to the data

subject” (Article 26, paragraph 2, of the Regulation).

As clarified by the European Data Protection Board, “the general criterion for the existence of joint controllership is the joint participation of two or more parties in defining the purposes and means of a processing operation. Joint participation may take the form of a common decision made by two or more parties [...]” (“Guidelines 07/2020 on the concepts of controller and processor under the GDPR,” adopted on July 7, 2021, paragraph 53).

That being said, it is noted that, as illustrated above, the note prot. n. XX of XX was signed by the President of the Order (also in the capacity of President of the Coordination) and by the Presidents of the OPI of Gorizia, Udine, and Trieste.

Having jointly determined the purposes and means of processing the personal data of the complainant and their spouse for the purpose of sending the aforementioned note to the Command Legion, they acted, albeit in the absence of a valid legal basis, as joint controllers of the processing (see Article 4, paragraph 1, no. 7, of the Regulation), having exercised a “decisive influence on the implementation and modalities of the processing, through a common decision or converging decisions that complement each other and are necessary for the processing as they have a tangible impact on the determination of the purposes and means” (“Guidelines 07/2020 on the concepts of controller and processor under the GDPR,” cited, Annex 1, which reflects the contents of section 3, concerning the “definition of joint controllers”).

Nevertheless, the Order and the other OPIs of Friuli Venezia Giulia did not enter into an internal agreement before commencing the processing, in order to transparently regulate their respective responsibilities regarding compliance with the obligations arising from the Regulation, thus the Order acted in violation of Article 26, paragraphs 1 and 2, thereof.

3.5 The omitted information on the processing of personal data.

In compliance with the aforementioned principle of “lawfulness, fairness, and transparency,” the data controller must take appropriate measures to provide the data subject, before commencing the processing, with all the information required by the Regulation, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language (see Articles 5, paragraph 1, letter a), 12, 13, and 14 of the Regulation; see also Article 29 Working Party, “Guidelines on Transparency under Regulation 2016/679,” WP260 rev.01, adopted on April 11, 2018, and endorsed by the European Data Protection Board with “Endorsement 1/2018” of May 25, 2018).

In this case, the Order, on the other hand, failed to inform the complainant and their spouse regarding the processing of personal data as illustrated above.

In this regard, it should be noted that the information on the processing of personal data published on the official website of the Order (see Annex 9 to the note of XX) refers to the processing of personal data of users of that website, and is therefore irrelevant to the processing subject to the complaint. Nor is there any indication that the Order had published on its website a general notice regarding the processing of personal data carried out in the context of fulfilling its institutional duties and administrative activities, to which the complainant could have referred.

Consequently, the Order acted in a manner inconsistent with the principle of “lawfulness, fairness, and transparency” and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data obtained directly from the data subjects) and 14 (in relation to data not obtained directly from the data subjects) of the Regulation.

3.6 The response to the data subject's request to exercise the right of access to personal data.

Article 12 of the Regulation provides that the data controller must provide the data subject with information regarding the action taken in response to a request under Articles 15 to 22 of the Regulation without undue delay and, in any case, no later than one month from the receipt of the request (paragraph 3).

If the data controller does not comply with the request of the data subject, they must inform the data

subject without delay, and at the latest within one month of receiving the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy (paragraph 4).

From the complaint and the documentation attached to it, it emerges that the data subject, on XX, submitted a request for access to personal data to the Order, pursuant to Article 15 of the Regulation, which was followed by a response from the Order sent to the complainant on XX (prot. n. XX).

In particular, the Order informed the complainant that “the [...] Order, in addition to the data indicated above, has indirectly come to know information about your employment status [...] as present in a joint note of OPI FVG and as public information on websites and documents available on the Internet, through a simple search on

****Main Engines****. As for the scope of data communication, the Order informed the complainant that “the categories of recipients to whom the data are communicated are: any ‘counter-interested parties’ in access proceedings and other OPI [...], the DPO of the entity, other lawyers appointed to protect the rights and legitimate interests of the entity. No data has been transferred to non-EU countries.”

By note dated XX, the complainant, in relation to the aforementioned access request, asked the Order to provide some clarifications regarding the origin of the data related to their profession and the scope of communication of the same (cf. art. 12, par. 1, of the Regulation; see also art. 14, par. 1, lett. d), and par. 2, lett. f), of the Regulation). In particular, the complainant requested to know “1. Whether the data regarding the profession of the undersigned was communicated to this President by another OPI or by personnel belonging to other OPIs; 2. Whether – in relation to the fact that the information regarding the profession of the undersigned would be public information available on websites and documents present on the Internet, accessible through a simple search on the main engines – such a simple search was conducted by you and for what purposes in relation to your official duties; 3. Whether, once the information regarding the profession of the undersigned was learned, this Order conducted further checks/verification to confirm the accuracy and timeliness of the data; 4. On what date the data regarding the profession of the undersigned was acquired; 5. Whether such data has been communicated to other natural and/or legal persons (including therefore the other OPIs of Udine, Trieste, and Gorizia and for what purpose).”

Regarding point 1, it is noted that the complainant's request for clarification is founded and pertinent, given that the Order limited itself to stating that it had acquired the information regarding the employment position “as it is present in a joint note of OPI FVG,” without specifying the details and content of such note, as well as the context in which it was made available to the Order. From the statements made by the Order, it also seems to emerge that the information in question was acquired before the sending of the joint note of the OPIs.

Regarding point 2, it is noted that the information regarding the specific authorized subjects who, within the organization of the data controller, under their authority and in accordance with their instructions, carried out a certain processing operation does not generally fall within the information that the data subject can request to obtain pursuant to art. 15, par. 1, of the Regulation (see Court of Justice of the European Union, case C-579/21, Pankki S, of June 22, 2023). As for the purposes for which such a search was conducted, the Order should have informed the data subject of the specific “purpose of the processing” pursued (art. 15, par. 1, lett. a), of the Regulation).

Regarding points 3 and 4, it is noted that the information regarding the “further checks/verification aimed at confirming the accuracy and timeliness of the data” carried out by the Order and “what [is the] date [on which the data regarding the profession of the undersigned was] acquired” does not fall among those that the data subject can request to obtain pursuant to art. 15, par. 1, of the Regulation.

Regarding point 5, it is noted that, although the Order had already informed the complainant about the communication of personal data to the “other OPIs of the Friuli Venezia Giulia Region,” the complainant had asked to know the “purpose” of such communication, that is, the purpose of the processing (art. 15, par. 1, lett. a), of the Regulation).

With regard to the complainant's grievances, who complained of not having received any response to this request for clarifications, the Order limited itself to stating that the complainant, by submitting this request, merely reiterated their access request of XX, to which the Order had already responded.

For the reasons outlined above, it must instead be concluded that the Order did not provide the complainant with all the information referred to in points 1, 2, and 5 of their note of XX, having therefore acted in violation of arts. 12, par. 3, and 15 of the Regulation.

In any case, even if the request in question was considered, in the opinion of the Order, to be a mere reiteration of a previous and fulfilled access request, or a request "manifestly unfounded or excessive, particularly due to its repetitive nature" (art. 12, par. 5, of the Regulation), the Order, pursuant to art. 12, par. 4, of the Regulation, should have "inform[ed] the data subject without delay, and at the latest within one month of receiving the request, of the reasons for the non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy."

In light of the preceding considerations, it is established that the Order acted in violation of arts. 12, pars. 3 and 4, and 15, par. 1, of the Regulation.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – for the veracity of which they may be held accountable pursuant to art. 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the closure of this procedure, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply. confirmation of the preliminary assessments of the Office, and it is noted that the processing of personal data carried out by the Order is unlawful, as it has acted in violation of Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, 15, paragraph 1, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, which are multiple, related to Articles 5, paragraph 1, letter a), 6, 12, paragraphs 3 and 4, 13, 14, and 15, paragraph 1, of the Regulation, as well as Article 2-ter of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

5. Corrective Measures (Article 58, paragraph 2, letter c), of the Regulation).

Article 58, paragraph 2, letter c), of the Regulation provides that the Authority has the corrective powers to "order the data controller or the data processor to comply with the requests of the data subject to exercise their rights under the [...] regulation."

Taking note of what emerged during the investigation and considering the fact that the Order did not provide the data subject with all the information elements referred to in Article 15, paragraph 1, letters a) – h), of the Regulation (see previous paragraph 3.6), nor did it present any factual or legal reasons opposing the acceptance of the data subject's request, it is necessary, pursuant to Articles 12, paragraphs 1 and 3, 15, paragraphs 1, and 58, paragraph 2, letter c), of the Regulation, to order the Order, if it has not already done so, to respond to the data subject's request to exercise the right of access within thirty days from the notification of this provision, also providing the Authority, within the same timeframe, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, with an adequately documented response regarding the initiatives undertaken to implement what has been ordered, or, alternatively, within the same timeframe, pursuant to Articles 12, paragraph 4, and 58, paragraph 1, letter a), of the Regulation, as well as 157 of the Code, to inform the Authority and the complainant regarding the possible existence of factual or legal reasons opposing the acceptance of said request, providing an adequately documented response.

In the event that the Order, after the notification of the violation, has already provided a response to the aforementioned request of the data subject, it is necessary to order the Order, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, to inform the Authority of this circumstance, providing, within the same timeframe indicated above, an adequately documented response.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and ancillary sanctions (Articles 58, paragraph 2, letters i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of the cited provisions is subject to the application of an administrative pecuniary sanction pursuant to the combined provisions of Articles 58, paragraph 2, letter i), and 83, paragraph 5, of the Regulation.

The administrative pecuniary sanction imposed, based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

the violation concerning the unlawful communication of the complainant's personal data to the Command Legion, where the complainant performs his work activity, is characterized by particular seriousness, considering the possible repercussions for the data subject in the workplace (cf. Article 83, paragraph 2, letter a), of the Regulation);

although in order to preserve the effectiveness and efficiency of the administrative action, deemed compromised by the repeated requests for civic access and the reports submitted by the complainant and his wife, during a period when the Order was particularly burdened by the obligations related to the verification of the vaccination requirement for healthcare professionals (no longer required following the issuance of Decree Law No. 162 of October 31, 2022, effective from November 1, 2022), the Order has exceeded its institutional competencies (cf. Article 83, paragraph 2, letter b), of the Regulation); the processing did not involve data belonging to special categories as referred to in Article 9 of the Regulation or data related to criminal offenses as referred to in Article 10 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation),

it is believed that, in this case, the level of seriousness of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is believed that, for the purposes of quantifying the sanction, the following circumstances should be taken into account:

although the Order has offered good cooperation with the Authority during the investigation, it does not appear that it has acted, based on the Authority's observations, to provide full...

Response to the request of the interested party for the exercise of the right of access to personal data and information related to processing (art. 83, par. 2, lett. c) and f), of the Regulation); no relevant previous violations committed by the Order are found (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, evaluated as a whole, and considering that the Order is a small public entity with limited financial and organizational resources, it is deemed appropriate to determine the amount of the monetary sanction at €6,000 (six thousand) for the violation of articles 5, par. 1, lett. a), 6, 12, par. 3 and 4, 13, 14, and 26, parr. 1 and 2, of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that, as highlighted above, the Order communicated the personal data in question to the complainant's employer, with potential repercussions for the complainant in the workplace, and that, therefore, the processing involved a vulnerable subject in this context (cf. rec. 75 and art. 88 of the Regulation and "Guidelines on Data Protection Impact Assessment and the criteria for determining whether processing 'may present a high risk' under Regulation 2016/679", WP 248 of April 4, 2017), it is also deemed appropriate to apply the ancillary sanction of publication of this provision on the

website of the Authority, as provided for by art. 166, comma 7 of the Code and art. 16 of the Regulation of the Authority no. 1/2019.

It is finally noted that the conditions set forth in art. 17 of Regulation no. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Order of Nursing Professions of Pordenone for violation of articles 5, par. 1, lett. a), 6, 12, par. 3 and 4, 13, 14, and 26, parr. 1 and 2, of the Regulation, as well as 2-ter of the Code;

****ORDERS****

the Order of Nursing Professions of Pordenone, represented by the legal representative pro tempore, with registered office at Piazzetta Ado Furlan, 2 - 33170 Pordenone (PN), C.F. 91007750937, to pay the sum of €6,000 (six thousand) as an administrative monetary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to art. 166, comma 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

****ORDERS****

the aforementioned Order:

in case of failure to settle the dispute pursuant to art. 166, comma 8, of the Code, to pay the sum of €6,000 (six thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent enforcement acts pursuant to art. 27 of Law no. 689/1981;

pursuant to arts. 12, parr. 1 and 3, 15, par. 1, and 58, par. 2, lett. c), of the Regulation, to provide the interested party, if not already done, after verifying the existence of the conditions provided by law, within thirty days from the notification of this provision, with the information elements referred to in art. 15, par. 1, lett. a) – h), of the Regulation (see previous par. 3.6), also providing the Authority, within the same term, pursuant to arts. 58, par. 1, lett. a), of the Regulation and 157 of the Code, with adequately documented feedback regarding the initiatives undertaken to implement what is ordered;

alternatively, within the same term as mentioned in the previous lett. b), pursuant to arts. 12, par. 4, and 58, par. 1, lett. a), of the Regulation, as well as 157 of the Code, to inform the Authority and the complainant, providing adequately documented feedback, regarding the possible existence of factual or legal reasons preventing the acceptance of the interested party's request to obtain the aforementioned information elements;

alternatively, pursuant to arts. 58, par. 1, lett. a), of the Regulation and 157 of the Code, in the event that the Order, after the notification of the violation, has already provided feedback to the aforementioned request of the interested party, to inform the Authority of this circumstance, providing, within the same term indicated above, adequately documented feedback.

****DISPOSES****

- the publication of this provision on the website of the Authority pursuant to art. 166, comma 7, of the Code (see art. 16 of the Regulation of the Authority no. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and measures adopted in accordance with art. 58, par. 2, of the Regulation (see art. 17 of the Regulation of the Authority no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 12, 2024

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Scorza

****THE SECRETARY GENERAL****

Mattei